

EIA guidelines

Environmental assessment procedure for routine and minor works

ENVIRONMENT BRANCH



About this release

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Approval and authorisation		Name
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Version	Date	Revision Description
1-0	05.01.09	First issue
1-1	14.02.11	Reference to <i>Roads Act 1993</i> added
1-2	10.06.11	Inclusion of snow and ice clearing activities.
1-3	22.08.11	Sandstone platforms and exposures in the Sydney Basin excluded from disturbed zone definition.
2.0	01/11/11	Best practice updates from user feedback and governance audit

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Environmental assessment procedure for routine and minor works

The environmental assessment procedure for routine and minor works has been developed to assist Roads and Maritime Services (formerly the RTA) in meeting its responsibilities under the *Environmental Planning and Assessment Act 1979* and *State Environmental Planning Policy (Infrastructure) 2007*.

The procedure consists of the following elements:

- | | |
|--|-----------------|
| • Environmental assessment procedure | EIA-P05-1 |
| • Activity checklist for routine and minor works | EIA-P05-G01-T01 |
| • Standard safeguards list for routine and minor works | EIA-P05-G01-T02 |
| • Step 2 memo template. | EIA-P05-G01-T03 |
| • Minor Works REF brief template | EIA-P05-G01-T04 |
| • Minor Works REF template | EIA-P05-G01-T05 |

The procedure is maintained by Environment Branch.

Project managers are encouraged to contact environment staff for advice on the implementation of this procedure.

Key environment contacts

- | | |
|--|-----------|
| • Hunter region Senior Environmental Officer | 4924 0281 |
| • Northern region Senior Environmental Officer | 6640 1072 |
| • Southern region Senior Environmental Officer | 4221 2765 |
| • South West region Senior Environmental Officer | 6938 1143 |
| • Sydney region Senior Environmental Officer | 8818 2516 |
| • Western region Senior Environmental Officer | 6861 1628 |
| • Hume Highway Office Senior Environmental Officer | 6923 3413 |
| • Pacific Highway Officer Environment Manager | 6640 1375 |
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| • Client & Environment Liaison Manager (Road & Fleet Services) | 9598 7721 |
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I Purpose

To provide a framework for assessing the potential environmental impact of routine and minor works projects carried out in the road corridor and on Roads and Maritime Services owned, controlled or managed properties and infrastructure (formerly RTA owned, controlled or managed properties and infrastructure).

In the context of this procedure, routine and minor works are regarded by Roads and Maritime Services (formerly RTA) as generally maintenance and minor works activities of minimal or minor environmental impact. The *Environmental Planning and Assessment Act 1979* (EP&A Act) and *State Environmental Planning Policy (Infrastructure) 2007* (ISEPP) impose environmental assessment requirements before carrying out activities and development (including routine and minor works) depending on the nature, scale and impacts of the type of work involved. Generally, routine and minor works will for environmental assessment purposes under the EP&A Act and the ISEPP fall within one of the following categories:

- Works that are not activities or development.
- Works that are characterised as exempt development.
- Some works that fall under Part 5 of the EP&A Act requiring a Minor Works Review of Environmental Factors (REF) to be undertaken.

Some routine and minor works also fall under the *Roads Act 1993*:

- Removal or lopping of trees and vegetation that is on or overhanging a public road for the purpose of removing a traffic hazard.

Each of these categories has different legal requirements. As a first step, there needs to be a preliminary review of the environmental impact of the works.

Works that are not activities or development, involve vegetation removal carried out for the purpose of removing a traffic hazard, or are characterised as exempt development will generally be located in the Disturbed Zone and are identified in Table 1 of the routine and minor works activities checklist (EIA-P05-G01-T01).

Standard safeguards that must be implemented (where applicable) when carrying out the above works are detailed in Table 1 of the routine and minor works standard safeguards list (EIA-P05-G01-T02).

2 Scope

This procedure provides a framework to ensure that all routine and minor works activities undertaken by the Roads and Maritime Services (formerly undertaken by the RTA) and its contractors are carried out in accordance with statutory responsibilities. The procedure provides a consistent approach to environmental impact assessment for routine maintenance activities and minor works projects.

The procedure applies to the assessment of all routine activities and minor works undertaken by Roads and Maritime Services (formerly undertaken by the RTA) or its contractors. The procedure is to be followed by all Roads and Maritime Services staff (formerly RTA) and contractors.

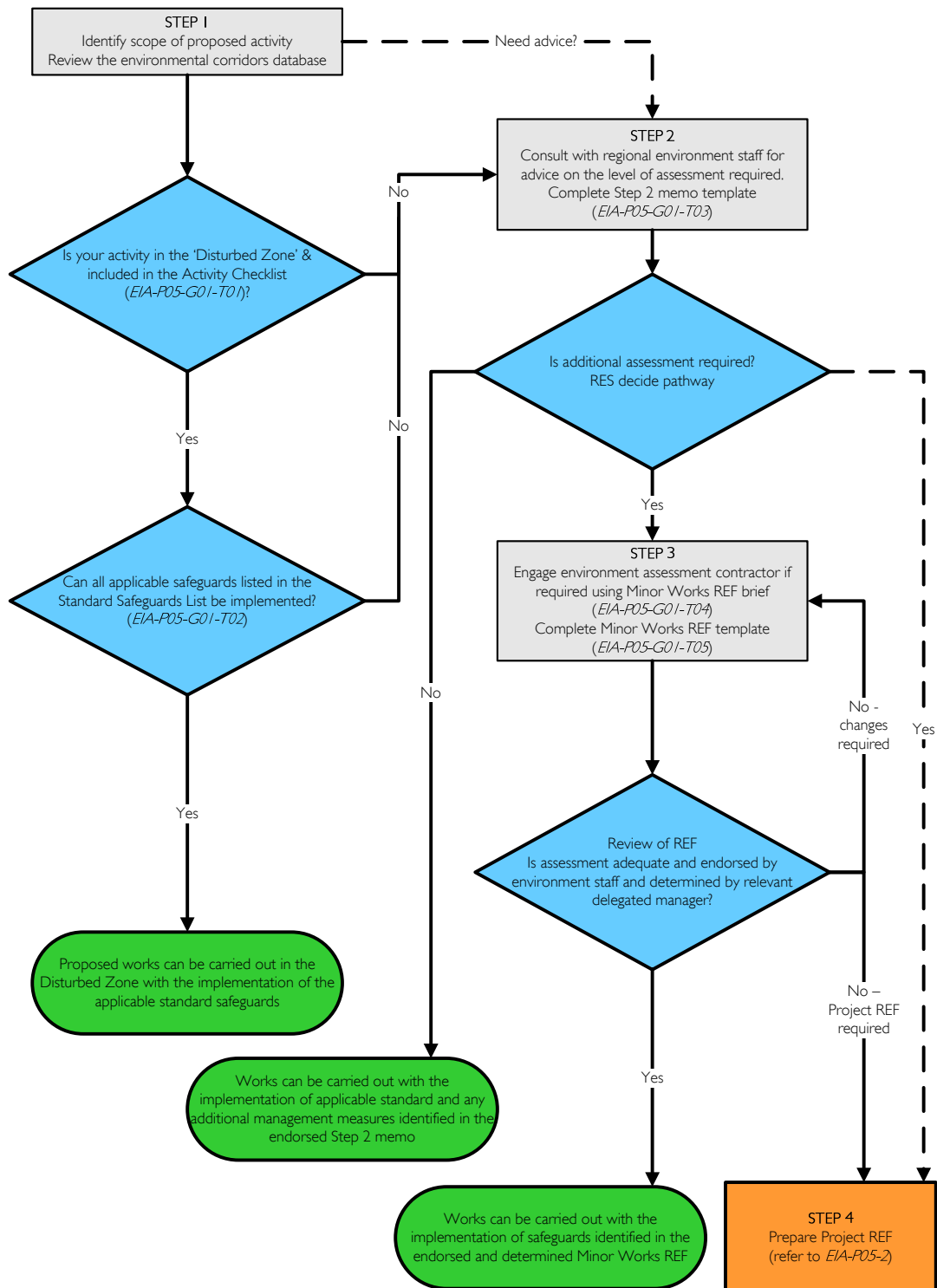
The procedure **does not apply** to:

- o 'Emergency Works' as described in clauses 5 and 97(1)(e) of the State Environmental Planning Policy (Infrastructure) 2007.
- o Any activity or part of an activity for which assessment under Division 4.1 of Part 4 (state significant development) or Part 5.1 (state significant infrastructure) of the EP&A Act applies.
- o Any development to which assessment under Part 4 of the EP&A Act applies.
- o Any works that are subject to a project specific REF that fall under the Project review of environmental factors procedure (*EIA-P05-2*).

The process, as illustrated in the flowchart below, must be applied to identify the appropriate level of environmental assessment required for the proposed routine and minor works.

3 Environmental assessment procedure

Figure 1: Road and Maritime Services' (formerly RTA's) Environmental assessment procedure for routine and minor works.



Note: For the purposes of road maintenance council contracts (RMCC), references to specific Roads and Maritime Services staff (eg environment staff, project manager (PM), asset manager) within this procedure should be taken to mean the following:

- Routine services (as defined in RMCC and internal Roads and Maritime Services alliance) – service provider.
- Ordered works – relevant contract manager.

Table 1: Details of Roads and Maritime Services' (formerly RTA) Environmental assessment procedure for routine and minor works.

Step	Process	Responsibility & approval	Guidance & tools
1	Scoping		
1.1	Identify scope of proposed activity. Review the environmental corridors database to identify any risk areas in and around the location of the proposed activity. If advice is needed, consult with RES. The <i>REF preliminary scoping checklist</i> can also be used as a guide.	PM	RMAP (where applicable) REF preliminary scoping checklist (<i>EIA-P05-G02-T01</i>) Environmental corridors database
1.2	Review disturbed zone figures and <i>Activity checklist</i> to determine whether all the proposed activities are included. o If YES, all the proposed activities ARE in the disturbed zone and included in the <i>Activity checklist</i> , proceed to Step 1.3 o If NO, all of the proposed activities ARE NOT in the disturbed zone and/or included in the <i>Activity checklist</i> , proceed to Step 2.	PM	Activity checklist (<i>EIA-P05-G01-T01</i>)
1.3	Determine if all the applicable safeguards listed in the <i>Standard safeguards list</i> can be implemented for the proposed activities. o If YES, all the applicable standard safeguards can be implemented, no further consultation or environmental assessment is required for the proposed activities. The proposed works can commence with the implementation of the applicable standard safeguards identified in the <i>Standard safeguards list</i> . This means that the works are not development or activities under the EP&A Act or are exempt development under the Act. o If NO, any of the applicable standard safeguards for the proposed activities CAN NOT be implemented, then proceed to Step 2.	PM	Standard safeguards list (<i>EIA-P05-G01-T02</i>)

Step	Process	Responsibility & approval	Guidance & tools
2	Consultation with regional environment staff		
2.1	Consult with regional environment staff (RES) to inform them of the proposed activities and to seek advice on the level of environmental assessment required. Complete the Step 2 memo template and forward to RES	PM	Step 2 memo template (EIA-P05-G01-T03)
2.2	RES review proposed activities and determine whether further assessment is required. Is additional assessment required? - o If YES, further environmental assessment is required for the proposed works, proceed to step 3 (or Step 4 if directed by RES). - o If NO, works can commence with the implementation of the standard and any additional management measures (as identified by RES and included in the memo), No further environmental assessment is required for the proposed activities. The works can commence with the implementation of standard and any additional management measures identified by RES. RES to document any additional safeguards on the Step 2 memo. This means that the works are not development or activities under the EP&A Act or are exempt development under the Act. This is to be confirmed by RES in the memo. RES to discuss with Environment Branch if advice is required.	RES	Step 2 memo template (EIA-P05-G01-T03)
3	Minor Works REF		
3.1	Engage environmental contractor (if required) using the Minor Works REF brief. Note - this is only required if an external contractor is used. PMs are strongly encouraged to prepare the Minor Works REF themselves in consultation with RES. Complete <i>Minor Works REF</i>. Note: consultation may be required. Refer to REF consultation guidance note.	PM	Minor Works REF brief (EIA-PO5-G01-T04) Minor Works REF template (EIA-PO5-G01-T05) REF consultation guidance note (EIA-PO5-G03)

Step	Process	Responsibility & approval	Guidance & tools
3.2	RES review <i>Minor Works REF</i> to assess whether the <i>Minor Works REF</i> is adequate or if further environmental assessment is required. - If RES require changes to the <i>Minor Works REF</i>, return to Step 3.1. RES are to complete the decision section of the <i>Minor Works REF template</i>. The decision memo and REF are to be forwarded to relevant delegated manager for determination. Is assessment adequate and endorsed by environment staff and determined by relevant delegated manager? - If YES, the proposed works can commence with the implementation of safeguards identified in the endorsed Minor Works REF and in any environmental management plan. Decision section of the REF template to be completed by RES and determined by the relevant delegated manager prior to works commencing. This means that the works fall under Part 5 of the EP&A Act. - If NO, and changes are required, the Minor Works REF is to be amended as requested. Return to Step 3.1. - If NO, further environmental assessment is required. Prepare a project REF in accordance with Roads and Maritime Services Project review of environmental factors procedure (<i>EIA-P05-2</i>) or other environmental impact assessment as directed. Proceed to Step 4.	RES Delegated manager	Minor Works REF template (<i>EIA-P05-G01-T05</i>)
4	Further environmental impact assessment		
4.1	Prepare a project REF in accordance with Roads and Maritime Services's Project review of environmental factors procedure (<i>EIA-P05-2</i>). This means that the works fall under Part 5 of the EP&A Act.	PM	Project REF procedure <i>EIA-P05-2</i>

4 Definitions

EIAG	Roads and Maritime Services (formerly RTA) environmental impact assessment guidelines
SP	Service provider (for RMCC: the relevant council)
CM	Contract manager
PM	Project manager (includes service provider and contract manager)
RES	Roads and Maritime Services regional environment staff
RMAP	Road maintenance annual plan
RMCC	Road maintenance council contract

5 Related information

Reference documents:

Roads and Maritime Services environmental impact assessment guidelines

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This procedure replaces the following documents:

- o *Geotechnical and Surveying Activities on RTA Roads – RTA State Wide, 2005.*
- o *Minor Works REF 2006 – RTA State Wide.*
- o *Maintenance Activities on RTA Bridges and Tunnels – RTA State Wide, 2006.*
- o *Maintenance Activities on RTA Maintained Roads, 2006.*
- o *Establishment and Management of RTA Operated Stockpile Sites REF – RTA State Wide, 2005.*
- o *Maintenance Activities Environmental Assessment Procedures– RTA Sydney Region, July 2008.*
- o *Minor Works Environmental Assessment Procedures – RTA Sydney Region, July 2008.*
- o *Routine and Minor Works on RTA Roads Bridges and Tunnels REF and Assessment Procedure – RTA South West Region, 2006.*
- o *Maintenance Activities on RTA Maintained Roads: Activity Specific Review of Environmental Factors RTA Southern Region July 2006.*
- o *Maintenance Activities on RTA Bridges and Tunnels Activity Specific Review of Environmental Factors RTA Southern Region July 2006.*
- o *Minor Works Review of Environmental Factors for Minor Works on RTA Managed and Maintained Roads RTA Southern Region 2006.*
- o *Geotechnical and Surveying Activities on RTA Roads Activity Specific Review of Environmental Factors RTA Southern Region 2007.*
- o *Maintenance Activities and Minor Works on RTA Maintained Roads, Bridges and Ferries-Environmental Assessment Procedures -RTA Western Region, July 2008.*
- o *Maintenance Activities on RTA Bridges, Ferries & Tunnels, RTA Northern Region, 2008.*
- o *Maintenance Activities on RTA Maintained Roads, RTA Northern Region, July 2008.*
- o *Snow and Ice Clearing Review of Environmental Factors, RTA Southern Region, June 2006.*